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Count(s)	Word(s)	Char(s)	Char(s) (WS)
Section 1	**1598**	**8836**	**10487**
Section 2	**402**	**2096**	**2510**
Section 3	**400**	**2043**	**2461**
Total	**2400**	**12975**	**15458**

Answer-to-Question-_1_

Immigration Assistance Reform Act (IARA)

The first potential constitutional problem with IARA is that it seeks to use state executive officials as officials in its federal immigration enforcement program. This runs into clear commandeering problems: Congress may not command state officials to administer or enforce a federal regulatory program. *Printz*. Yet it looks like that is precisely what is happening here.

Importantly, Congress' power over immigration is plenary. *Chae Chan Ping*. Thus, Congress occupies the entire field of immigration and its power is nigh-unreviewable. Congress could try to use this fact--perhaps in combination with the Supremacy Clause (Art. 6, cl.2)--to make a creative argument that the states may not resist Congress' command on this issue. This argument is not very plausible: Congress' plenary power over immigration and the supremacy of federal law don't support the conclusion that Congress can command the states to do whatever it wants within those areas without limit. That seems directly contrary to the Virginia Plan: the federal government acts directly upon the people rather than using the state governments as its means.

Congress could appeal to the Necessary and Proper Clause, arguing that since Congress concededly has the plenary immigration power, it also has the right to enact laws necessary and proper to effectuate its immigration policies. As Justice Marshall famously put it: "Let the end be legitimate, let it be within the scope of the constitution . . . ." But this probably goes too far: the Necessary and Proper Clause does not override other constitutional limitations. The Tenth Amendment should not be ignored, and there is a long (but contested) tradition on the Supreme Court of recognizing that Amendment as a shield for the states against federal encroachment. *The Civil Rights Cases*; *Lopez*; *National League of Cities*. There is a plausible argument that deputizing of state officials encroaches upon states' sovereignty in an impermissible way, regardless of Congress' plenary immigration power. After all, the deputization of state officials is plausibly analogous to forcing a state to move its capital, which the Supreme Court has recognized as unconstitutional. *Coyle*.

Congress may try to argue that, in light of Executive Order 1 (EO1), this statute constitutes not a command but rather a consensual contract-like relationship. *Steward Machine*. Specifically, the states will receive continued prosecution of federal crimes in their territory, and in exchange, they must allow their state law enforcement officers to provide immigration enforcement assistance upon request. *Printz*, in contrast, entailed a hard requirement rather than a give-and-take.

But this raises difficult questions about how to view the constitutional doctrines about coercion and consent, because here, the supposed condition is laid out in an executive order that is completely separate from the statute. The statute itself doesn't appear to have a cooperative system in mind: it contains no conditions, and merely declares the deputization of state, private, and Native American law enforcement officers. Furthermore, if the executive order is an essential piece of this scheme, it faces the possibility that a future president could rescind the executive order while the statute remains in place. That suggests that the structure of this scheme is constitutionally problematic.

Even if this scheme is properly viewed as a system of cooperation, the states will respond that *New York*,

too, could be construed as a give-and-take, and that didn't stop the Court from ruling that the take-title provision in the statute was unconstitutional. Specifically, that statute provided the states with a choice between two unconstitutional alternatives: they either had to accept Congress' command to regulate, or accept its take-title command. Congress lacked the power to do either, and therefore lacked the power to offer that choice.

But Congress will likely point out that *New York* was distinguished from *Garcia* by Justice O'Connor because the radioactive waste statute regulated states *qua* states, whereas the federal minimum-wage laws in *Garcia* applied to state and private parties alike. The IARA, arguably, is like the minimum-wage statute: §2(A) defines "law enforcement officers" to include "private security officers." This almost seems to function like a jurisdictional hook (like *Scarborough*) but adapted to the *Garcia-New York* debate.

The statute also attempts to impose this requirement on Native Nations. On the one hand, Congress' power in this realm is plenary. *Lone Wolf*. On the other hand, however, the Supreme Court has recognized that Native Nations still retain the authority to regulate necessities to preserving their inherent sovereignty. *Montana*. This inherent sovereignty, though nebulous, appears to be quite limited. If Native Nations may not regulate activities by non-Natives on their own land, the degree of sovereignty is necessarily weak. This is especially so given the "relation of dependency" that exists between Native Nations and the U.S. government. *Lone Wolf*. One of the things that Native Nations depend on the U.S. for is the enforcement of immigration laws. Perhaps this relationship of dependency therefore rightfully enables the government to call upon Native law enforcement officers to assist in accomplishing the goals upon which the Native Nations depend.

A final worry which the states might raise about the IARA is that it will confound accountability. *Lopez* (Kennedy concurrence). State agents will be forced to effectuate federal policy, and the voters won't know who to blame if they disapprove of the way that immigration enforcement is being conducted.

Executive Order 1

As mentioned above, EO1 raises the possibility that this arrangement constitutes a sort of contractual bargain like the ones sometimes conducted under the Spending Clause (Art. I, §8, cl.1), *see Steward Machine*; *Dole*, even though technically the condition on states' non-compliance is non-monetary.

There is a supportable argument that the executive order, viewed in isolation, is constitutional because the choice not to prosecute crimes falls solely within the unreviewable discretion of the executive. *Cox*. Following a line of argument from above, Congress could argue that *New York* is distinguishable because the condition on non-compliance--refusal to prosecute federal crimes--is within the proper constitutional authority of the executive. But even if this argument were accepted, there is still the question of whether this pseudo-contractual arrangement would be proper.

Dole sets out the conditions. Here, Congress' regulation appears to be in pursuit of the "general Welfare. " It's at least facially plausible that the government acquiring additional assistance in enforcing the immigration laws aids the welfare of the nation. For a court to find otherwise would likely get itself involved in political questions.

EO1's condition is also unambiguous: failure to comply will cause the federal government to stop

prosecuting federal crimes in the non-complying states and Native reservations.

The conditinon in EO1 and the purpose of the statute both have to do with the enforcement of federal laws, so there is a high-level facial relationship. But the purpose of this limitation is to ensure that the federal government isn't using a permissible power as a pretext to force the states to do something completely unrelated. Whereas in *Dole* there was at least some plausible connection between federal highway funds and road safety, there is not really such a connection between prosecuting *any* federal crimes and deputizing state officials to help prosecute a specific category of them. Even under the somewhat forgiving *Dole* standard on this issue, this looks a lot like an attempt to coerce commandeering compliance rather than a permissible connection.

A further *Dole* problem is that there must not be a separate constitutional bar to the imposition of the condition. But here, there might be. The Constitution doesn't just grant powers to the federal government--it also imposes *responsibilities* to the states. Art. IV, §4 provides that "The United States *shall guarantee* to every State in this Union a Republican Form of Government, and *shall protect* each of them against Invasion; and . . . against domestic Violence" (emphasis added). Although many criminal laws fall under state law and therefore wouldn't be affected by EO1, the states could make the argument that in refusing to prosecute federal crimes, the government would be abdicating its constitutional responsibility to protect the states against domestic violence and, if unrestricted immigration could somehow be construed as an "invasion" (which is not really plausible), the government's failure to prosecute infractions of immigration law could be construed as a derogation of that duty as well.

The states might argue that if this is supposed to be a cooperative venture, it is nevertheless coercive. The Court has held that when the federal government threatens to withdraw support to the states--support upon which the states have been relying--as a condition for cooperation in a new program, that condition is unconstitutional. *NFIB*. There are clear parallels here. Continued prosecution of federal crimes is like old Medicaid, and that continued prosecution plus the states' cooperation in enforcing immigration laws is like Medicaid post-ACA. The extent of the coercion--and the strength of this argument--will depend on facts about how costly or damaging it would be for the states if the federal government stopped prosecuting crimes.

If EO1 made its way before a court, Congress could try to make a long-shot argument that this falls within "zone 1" of Justice Jackson's framework in *Youngstown*. Congress and the president are apparently on the same page here, and the judiciary should be careful when questioning the exercise of presidential power when it is in concurrence with the will of Congress. One issue with this argument is that it doesn't seem to be quite what Jackson had in mind; Congress hasn't delegated any authority to the president here. The president is merely trying to bolster an act of Congress. Furthermore, the constitutional problems that plague this arrangement might be enough to overcome any (dubious) validity possessed by this *Youngstown* analysis.

----------ANSWER-1-ABOVE----------

---------DO-NOT-EDIT-THIS-DIVIDER----------

----------ANSWER-2-BELOW----------

Answer-to-Question-_2_

The basic holding of *Trump v. United States* was that the extent of *presidential* immunity depended on whether the acts in question were official, unofficial, or on the periphery of presidential authority. If the VP is thought to be analogous to the president for the purposes of this holding--an assumption that carries a lot of baggage, given that Article II vests the "executive Power" in the president alone--its applicability to the VP would still likely be somewhat limited.

The only specific power that the Constitution gives the VP is the power to serve as "President of the Senate," and cast tiebreaking votes when that body is "equally divided." Art. I, §3, cl.4. But this is a legislative role. Indeed, the reasoning that undergirds *Trump* is based on an interpretation of the unique *executive* power. Because the president makes "sensitive and far-reaching" decisions, and should not be forced to be "unduly cautious," the president needs immunity for official acts. Hence, the Framers purposely placed the executive power in a unitary, energetic individual. *Hamdi* (Thomas dissent). These considerations are inapplicable to the VP, who is not (textually) entrusted to make "sensitive and far-reaching" decisions.

Such an advocate might further argue that the vice president should be protected for *Trump*-protected exercises of power delegated by the president to the VP. Although there is little in the text of the Constitution to suggest that the VP could or would serve as a delegatee of the executive power, the very fact that the vice president *exists* might be evidence enough. After all, surely the Framers envisioned more for the VP than breaking ties in the senate--otherwise, why place the position in the executive branch? Furthermore, the structural purposes pointed out by the majority in *Trump* might be partly defeated if the VP must worry about whether she could be prosecuted for the exercise of delegated executive powers. This argument could be bolstered even further if it could be argued that, pursuant to an intrabranch past practice or "gloss" (as in Frankfurter's *Youngstown* concurrence), the VP has in fact acquired some executive authority over time, and the president has acquiesced.

True, once a VP becomes *the president*, she will presumably be entitled to all the immunities that *the president* has. *See* Art. II, §1, cl.6. The VP is probably also immune from prosecution under *Trump* for acts she takes when acting *as* the president under the Twenty-Fifth Amendment.

----------ANSWER-2-ABOVE----------

---------DO-NOT-EDIT-THIS-DIVIDER----------

----------ANSWER-3-BELOW----------

Answer-to-Question-_3_

The phrase "or to the people" is a puzzling one, at least in part because it apparently receives little to no attention in the cases dealing with federalism and the Tenth Amendment.

At minimum, this phrase might serve a recognition of the fact that the Constitution is not necessarily a mere compact between the states, but rather creates a separate government whose sovereignty arises directly from the people. (The Virginia vs. New Jersey Plans debate highlights this debate, as does Marshall's opinion in *McCulloch*: "it is a *constitution* we are expounding.") If it were the case that the Constitution was merely a compact between the states, the Tenth Amendment's declaration that the residuum of power is held by the states *and* the people would be strange.

But one might wonder what work that phrase is actually doing. Is it merely an affirmation, or does it signify something more?

If the regions of proper state regulation are seen as fixed, then perhaps there is a residuum left over when we subtract federal enumerated powers and the states' fixed ones. Perhaps the Tenth Amendment suggests that this hidden residuum belongs to the people--though it is left unclear how the people are to exercise this power. This is ultimately not that strong of an argument: the Constitution's strategy seems to be that the federal government is one of enumerated powers and the states pick up the rest. Even O'Connor's majority in *New York* describes the Amendment as a "tautology." If the Constitution envisioned an extra residuum outside state and federal governments' powers, then it probably would have made clearer what specific powers the states may exercise.

Another theory is that this Amendment serves to protect the people against power-grabs by the federal government in the absence of state regulation. In other words, if the states fail to exercise their power over an area that rightfully belongs to them, it doesn't just fall back to the federal government by default, but falls rather to the people.

Alternatively, it might even be the case that this Amendment is what allows the states to delegate lawmaking to their citizens in certain circumstances. Several state constitutions permit their citizens to vote in referenda or plebiscites. Where a certain power is not held by the federal government, and the states wish to allow the people to exercise legislative authority, the Tenth Amendment makes clear that this is appropriate.